

Keshav Prasad v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench (Chief Justice's Court) · 11 July 2023 · 2023:AHC:136119-DB · WRIT - C No. 17078 of 2023 · **Disposed with liberty to file Section 127 appeal within two weeks**

HEADNOTE

Writ against electricity recovery proceedings disposed of because an appeal under Section 127 had not been availed. Petitioner permitted to file that appeal with an interim-relief application within two weeks; the authority is to decide any such application strictly in accordance with law. The Court's restraint on coercive action continues for those two weeks. The order places Section 127 in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Keshav Prasad invoked the writ jurisdiction of the Allahabad High Court against the State of U.P. and three others over recovery proceedings of the Electricity Department. On 19 May 2023 a Division Bench gave the Department time to obtain instructions, directed that the petition be listed on 30 May 2023, and ordered that no coercive action be taken in the meantime. On 30 May 2023 the Department was granted further time and the interim order was extended until the next listing on 11 July 2023.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Section 127 appeal as alternate remedy to a writ against recovery

HOLDING

The Court held that the petitioner had an alternative remedy of appeal under Section 127, which the order places in the U.P. Electricity Supply Code, 2005, and that the writ had been filed without availing it. The petition was disposed of with permission to file that appeal, together with an application for interim relief, within two weeks. Any such application is to be decided by the authority concerned strictly in accordance with law. The interim order already operating in the petitioner's favour continues for two weeks. ¶ 11.7.2023

FLAG The order attributes Section 127 to the U.P. Electricity Supply Code, 2005. Section 127 is a provision of the Electricity Act, 2003; that attribution is not corrected.

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ The writ, filed without availing the Section 127 appeal against the recovery proceedings, was not retained for a decision on the recovery. ¶ 11.7.2023

alternative-remedy-relegation-section-127 The petition was disposed of with permission to file a Section 127 appeal and an interim-relief application within two weeks, that application to be decided in accordance with law. ¶ 11.7.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED RECOVERY PROCEEDINGS

The Court did not examine the recovery and disposed of the writ for the statutory appeal. ¶ 11.7.2023

NOT DECIDED — INTERIM RELIEF BEFORE THE SECTION 127 AUTHORITY

Any interim application is to be decided by the authority concerned strictly in accordance with law. ¶ 11.7.2023

